

Court No. - 3

Case :- WRIT - C No. - 21937 of 2016

Petitioner :- Brijendra Singh Tewatiya

Respondent :- State Of U.P. And 4 Ors.

Counsel for Petitioner :- Sunil Dubey

Counsel for Respondent :- C.S.C.,Nripendra Mishra

Hon'ble Krishna Murari,J.

Hon'ble Vinod Kumar Misra,J.

Sri Nripendra Mishra, who has accepted noticed on behalf of the respondent nos. 2 and 3 may seek instructions within 10 days with respect to the allegation made in the petition that final assessment has been made without providing provisional assessment bill, without opportunity to file objection thereto and without fixing any date for hearing the parties concerned.

Put up this petition as fresh on 23rd May, 2016.

Order Date :- 12.5.2016

A. Pt. Singh

Court No. - 3

Case :- WRIT - C No. - 21937 of 2016

Petitioner :- Brijendra Singh Tewatiya

Respondent :- State Of U.P. And 4 Ors.

Counsel for Petitioner :- Sunil Dubey

Counsel for Respondent :- C.S.C., Nripendra Mishra

Hon'ble Krishna Murari, J.

Hon'ble Arvind Kumar Mishra-I, J.

Heard learned counsel for the petitioner, learned Standing counsel for the State respondents and Sri Nripendra Mishra appearing for respondents no. 2 & 3.

By means of this petition filed under Article 226 of the Constitution of India, petitioner has prayed for quashing of the impugned demand notice dated 13.03.2015 and recovery certificate dated 29.12.2015 issued by the respondent nos. 3 & 4 respectively.

When the matter was taken up as fresh on 12.5.2016, the Court passed the following order :

"Sri Nripendra Mishra, who has accepted noticed on behalf of the respondent nos. 2 and 3 may seek instructions within 10 days with respect to the allegation made in the petition that final assessment has been made without providing provisional assessment bill, without opportunity to file objection thereto and without fixing any date for hearing the parties concerned.

Put up this petition as fresh on 23rd May, 2016."

Today when the case called out, a counter affidavit on behalf of respondents no. 2 & 3 has been filed Sri Nripendra Mishra, Advocate, which is taken on record. From a perusal of the counter affidavit, it appears that the provisional assessment has been made without fixing the date of hearing, and without issuing any notice..

In the absence of notice and opportunity of hearing before making provisional assessment in compliance of the provisions contained under clause 6.8(b) of the U.P. Electricity Supply Code, 2005, which is mandatory, the impugned demand notice dated 13.03.2015 and recovery certificate dated 29.12.2015 issued by the respondent nos. 3 & 4 respectively are not liable to be sustained and are hereby quashed.

Writ petition stands allowed. It shall be open to the respondents to make a fresh assessment after following the procedure prescribed.

However, there shall be no order as to costs.

Order Date :- 15.7.2016

nd